

PART 1

WEBSITE TERMS AND CONDITIONS OF SUPPLY FOR BUSINESSES

Introduction

This document (**Part 1**) (together with our Terms of Use & Acceptable Use Policy, Cookies Policy and Privacy Policy and the detailed terms set out in Part 2 below) contain information about us and the legal terms and conditions on which we make available our services to you through our website. Our website can be accessed via the following link: www.nqsolicitors.com

These terms and conditions will apply to any contract between us for use of our services by you. Please read these terms and conditions carefully and make sure that you understand them before making your first Search (as defined in Part 2) on our website. Please note that before making your first Search you will be asked to agree to these terms and conditions. If you do not accept these terms and conditions, you will not be able to use the services that we make available on our website.

You should print a copy of these terms and conditions or save them to your computer for future reference.

We amend these terms and conditions from time to time as set out in clause 10.5 in Part 2. Every time you wish to use our services, please check these terms and conditions to ensure you understand the terms which will apply at that time. These terms and conditions were most recently updated on 05th September 2016.

These terms and conditions, and any contract between us, are only in the English language.

Information about us

We operate the website nqsolicitors.com. We are NQ Recruitment Ltd (trading as NQSolicitors.com), a company registered in England and Wales under company number 09829178 and with our registered office at 25 Southampton Buildings, London, England, WC2A 1AL. Our VAT number is 231960321.

Contact

You may contact us by e-mailing us at info@nqsolicitors.com If you wish to give us formal notice of any matter in accordance with these terms and conditions, please see clause 10.8 in Part 2.

Use of our site

Your use of our site is governed by our Terms of Use & Acceptable Use Policy. Please take the time to read these, as they include important terms which apply to you.

How we use personal information

We only use personal information in accordance with our Privacy Policy [https://nqsolicitors.com/pdf/Website%20Privacy%20Policy%20\(Final\).pdf](https://nqsolicitors.com/pdf/Website%20Privacy%20Policy%20(Final).pdf). Please take the time to read our Privacy Policy, as it includes important terms which may apply to you.

PART 2

1. INTERPRETATION

1.1 Definitions:

Business Day: a day other than a Saturday, Sunday or public holiday in England when banks in London are open for business.

Candidate: an individual who registers on the Website with a view to being Introduced to/Engaged by a Hirer and whose profile is uploaded to the Website.

Conditions: these terms and conditions (including Part 1) as amended from time to time in accordance with clause 10.5.

Contract: the contract between the Supplier and the Hirer for the supply of Services in accordance with these Conditions.

Control: shall be as defined in section 1124 of the Corporation Tax Act 2010, and the expression **change of Control** shall be construed accordingly.

Engagement: the engagement or employment of the Candidate by the Hirer (or any third party (as the case may be) on a permanent or temporary basis, whether under a contract of service or for services; under an agency, licence, franchise or partnership agreement; or any other engagement; directly or through a limited company of which the Candidate is an officer or employee; and whether the Engagement is an Initial Engagement or a Subsequent Engagement (as defined in clause 5.5) (the terms **Engage** and **Engaged** shall be construed accordingly).

Hirer: the entity which uses Services provided by the Supplier.

Initial Engagement: has the meaning given in clause 5.5.

Intellectual Property Rights: patents, rights to inventions, copyright and related rights, trade marks, business names and domain names, rights in get-up, goodwill and the right to sue for passing off, rights in designs, database rights, rights to use, and protect the confidentiality of, confidential information (including know-how), and all other intellectual property rights, in each case whether registered or unregistered and including all applications and rights to apply for and be granted, renewals or extensions of, and rights to claim priority from, such rights and all similar or equivalent rights or forms of protection which subsist or will subsist now or in the future in any part of the world.

Introduction: the delivery, following a Match, to the Hirer (via the Website or otherwise) of the curriculum vitae of the relevant Candidate and/or such other information which identifies that Candidate (the terms **Introduce** and **Introduced** shall be construed accordingly).

Match: the matching of a potential Candidate to the Hirer's Search criteria resulting in the delivery to the Hirer (via the Website or otherwise) of certain anonymous details relating to that Candidate.

Part 1: the introduction to these terms and conditions.

Placement Fee: the fee payable by the Hirer to the Supplier in accordance with clause 5.

Registration Process: the process of registration on the Website as a Hirer in accordance with the instructions on the Website relating thereto.

Remuneration: base salary or fees, guaranteed and/or anticipated bonus and commission earnings, allowances, inducement payments, the benefit of a company car, and all other payments and taxable (and, where applicable, non-taxable) emoluments payable to or receivable by the Candidate for services rendered to or on behalf of the Hirer under an Engagement.

Search: a search by the Hirer via the Website for appropriate Candidates based on certain search criteria inputted by the Hirer.

Services: recruitment services provided by the Supplier to the Hirer via the Website (or otherwise).

Start Date: the date on which an Engagement or a Subsequent Engagement (as the case may be) commences.

Subsequent Engagement: has the meaning given in clause 5.5.

Supplier: NQ Recruitment Ltd registered in England and Wales with company number 09829178.

Website: www.nqsolicitors.com and any associated software, microsites or subsections which are hosted within the Supplier's web environment, through which the Supplier provides the Services.

1.2 Interpretation:

- (a) A reference to a statute or statutory provision is a reference to it as amended or re-enacted. A reference to a statute or statutory provision includes any subordinate legislation made under that statute or statutory provision, as amended or re-enacted.
- (b) Any phrase introduced by the terms **including, include, in particular** or any similar expression, shall be construed as illustrative and shall not limit the sense of the words preceding those terms.
- (c) A reference to **writing** or **written** includes email.

2. BASIS OF CONTRACT

- 2.1 A person who completes the Registration Process on the Hirer's behalf must have the requisite authority to bind the Hirer contractually on all matters relating to the Services and the Contract shall become binding at the point at which each person conducting a Search on behalf of the Hirer confirms their agreement to these

Conditions by ticking the appropriate box immediately prior to conducting their first Search.

- 2.2 Any descriptive matter or advertising issued by the Supplier, and any descriptions or advertising contained in the Supplier's catalogues or brochures, are issued or published for the sole purpose of giving an approximate idea of the Services described in them. They shall not form part of the Contract or have any contractual force.
- 2.3 Unless otherwise agreed in writing by a director of the Supplier, these Conditions apply to the Contract to the exclusion of any other terms that the Hirer seeks to impose or incorporate, or which are implied by trade, custom, practice or course of dealing.

3. SUPPLY OF SERVICES

- 3.1 The Supplier shall supply the Services to the Hirer and shall do so with reasonable care and skill.
- 3.2 Notwithstanding clause 3.1 the Supplier:
- (a) does not warrant that the Hirer's use of the Services will be uninterrupted or error-free; or that the Services and/or any information obtained by the Hirer through the Services will meet the Hirer's requirements; or that a Search conducted by the Hirer will result in a Match;
 - (b) does not make any representation, warranties or guarantees as to the accuracy or completeness of any commentary, information and other materials on the Website including, without limitation, details relating to a particular Candidate; and
 - (c) is not responsible for any delays, delivery failures, or any other loss or damage resulting from the transfer of data over communications networks and facilities, including the internet, and the Hirer acknowledges that the Services may be subject to limitations, delays and other problems inherent in the use of such communications facilities.
- 3.3 The Supplier shall have the right to make any changes to the Services which are necessary to comply with any applicable law or safety requirement, or which do not materially affect the nature or quality of the Services.

4. HIRER'S OBLIGATIONS

- 4.1 The Hirer shall:

- (a) notify the Supplier immediately of any offer of an Engagement it makes to a Candidate;
- (b) notify the Supplier immediately in the event that an offer of an Engagement has been accepted;
- (c) where an offer of an Engagement is accepted, promptly (and in any event within five Business Days of such acceptance) provide the Supplier with full details of the Remuneration for, and confirmation of the Start Date of, such Engagement;
- (d) keep the details of an Introduction strictly confidential and not use such details otherwise than in connection with the Provision of Services;
- (e) provide the Supplier with such information as the Supplier may reasonably require in relation to an Engagement, and ensure that such information is accurate in all material respects; and
- (f) co-operate with the Supplier in all matters relating to the Services.

5. FEES AND PAYMENT

- 5.1 The Hirer is not required to pay a subscription fee in connection with the Registration Process.
- 5.2 The Hirer shall pay the Supplier the Placement Fee in the event that a Candidate is Engaged by the Hirer within 12 months of the relevant Introduction whether as a result of or in connection with the provision of the Services or otherwise.
- 5.3 Subject to clauses 5.4 and 5.8, the Placement Fee shall be an amount equal to 12.5% of the Remuneration payable to or receivable by the Candidate during the first 12 months of the Engagement.
- 5.4 In the event that the relevant Engagement is for a fixed term of less than 12 months, the Placement Fee payable to the Supplier in relation to that Engagement shall be 12.5% of the total Remuneration payable for that Engagement.
- 5.5 In the event that the first Engagement of a particular Candidate (**Initial Engagement**) is for a fixed term of less than 12 months and either:
 - (a) the Engagement is extended by the Hirer beyond the Initial Engagement; or
 - (b) the Hirer Engages that Candidate within 12 months from the date of termination of the Initial Engagement,

(in either case, a **Subsequent Engagement**) then the Supplier shall be entitled to an additional fee calculated in accordance with clause 5.6.

5.6 The additional fee payable by the Hirer to the Supplier in accordance with clause 5.5 shall be an amount equal to 12.5% of the Remuneration payable to or receivable by the relevant Candidate during the period up to and including the sooner of:

- (a) the termination of the Subsequent Engagement; and
- (b) the first anniversary of the Start Date of the Subsequent Engagement.

5.7 In the event that:

- (a) the Hirer discloses (in contravention of clause 4.1(d)) the details of an Introduction to a third party; and
- (b) such disclosure results in an Engagement between the relevant Candidate and such third party which commences within 12 months of the relevant Introduction,

the Supplier shall be entitled to a Placement Fee in relation to such Engagement which shall be calculated in accordance with clause 5.3.

5.8 Where the Supplier is not provided with details of the Remuneration payable to or receivable by a Candidate under a particular Engagement, the Placement Fee payable by the Hirer shall be based on the minimum level of salary and benefits payable for the position in which the Candidate is Engaged, having regard to information supplied by the Hirer to the Supplier and to the salary and benefits payable to individuals employed in comparable positions in the market generally.

5.9 The Supplier shall invoice the Hirer for the fees payable under this clause 5 together with VAT (if applicable) on the Start Date of the relevant Engagement.

5.10 The Hirer shall pay each invoice submitted by the Supplier:

- (a) within 30 days of the date of the invoice; and
- (b) in full and in cleared funds to the Supplier's nominated bank account, and

time for payment shall be of the essence of the Contract.

5.11 If the Hirer fails to make any payment due to the Supplier under the Contract by the due date for payment, then the Hirer shall pay interest on the overdue amount at the rate of 2% per cent per annum above Metro Bank PLC's base rate from time to time. Such interest shall accrue on a daily basis from the due date until actual payment of the overdue amount, whether before or after judgment. The Hirer shall pay the interest together with the overdue amount.

5.12 The Hirer shall pay all amounts due under the Contract in full without any set-off, counterclaim, deduction or withholding (except for any deduction or withholding required by law). The Supplier may at any time, without limiting its other rights or

remedies, set off any amount owing to it by the Hirer against any amount payable by the Supplier to the Hirer.

6. SUITABILITY AND REFERENCES

6.1 The Hirer shall be solely responsible for:

- (a) ensuring and satisfying itself that a Candidate is suitable for a particular Engagement;
- (b) taking up any references supplied by a Candidate prior to Engaging such Candidate;
- (c) obtaining any work permits and such other permissions to work as may be required in relation to a particular Engagement;
- (d) arranging any medical examinations or investigations into the medical history of a particular Candidate as may be required; and
- (e) satisfying any other medical (or other) requirements, qualifications or permissions as may be required by the law of the country in which the Candidate is to be Engaged.

7. INTELLECTUAL PROPERTY RIGHTS AND RESTRICTIONS

7.1 The Hirer acknowledges and agrees that the Supplier owns all Intellectual Property Rights in the Services. Except as expressly stated herein, this agreement does not grant the Hirer any rights to, or in any Intellectual Property Rights, or any other rights or licences in respect of the Services.

7.2 The Hirer shall not:

- (a) except as may be allowed by any applicable law which is incapable of exclusion by agreement between the parties and except to the extent expressly permitted under this agreement, attempt to copy, modify, duplicate, create derivative works from, frame, mirror, republish, download, display, transmit, or distribute all or any portion of any materials contained on the Website in any form or media or by any means;
- (b) distribute information contained on the Website to any commercial trading entity (including, without limitation, any recruitment agent);
- (c) distribute information contained on the Website to a third party which is not a commercial trading entity without the prior written consent of the Supplier;
- (d) access all or any part of the Services in order to build a product or service which competes with the Services; or
- (e) use the Services to provide services to third parties; or

- (f) subject to clause 10.2(b), license, sell, rent, lease, transfer, assign, distribute, display, disclose, or otherwise commercially exploit, or otherwise make the Services available to any third party except ; or
 - (g) remove any copyright notices appearing on the Website; or
 - (h) use any information obtained as a result of a Search for any purposes other than for procuring an Engagement resulting from the Services.
- 7.3 Only employees, agents and sub-contractors using an email address which clearly identifies them as employees, agents or sub-contractors of the Hirer shall be entitled to access the Website using login details provided by the Supplier following completion of the Registration Process, and the Hirer shall use all reasonable endeavours to prevent any unauthorised access to, or use of, the Services, and in the event of any such unauthorised access or use, shall promptly notify the Supplier.
- 7.4 Any rights provided to the Hirer under this agreement are granted to the Hirer only, and shall not be considered granted to any subsidiary or holding company of the Hirer.
- 7.5 The Supplier reserves the right, without liability or prejudice to its other rights to the Hirer, to disable the Hirer's access to the Website in the event of any breach of clause 7.3 or clause 7.4.
- 8. LIMITATION OF LIABILITY:**
- 8.1 Nothing in the Contract shall limit or exclude the Supplier's liability for:
 - (a) death or personal injury caused by its negligence, or the negligence of its employees, agents or subcontractors;
 - (b) fraud or fraudulent misrepresentation; or
 - (c) any other liability that cannot be excluded or limited by English law.
- 8.2 Except as expressly set out in this agreement, the Hirer gives no representation, warranty or undertaking in relation to the Services, and any representation, condition or warranty which might be implied or incorporated into this agreement by statute, common law or otherwise is excluded to the fullest extent permitted by law.
- 8.3 Subject to clause 8.1, and to the fullest extent permitted by law, the Supplier's liability under or in connection with the Contract/in connection with the provision of the Services, whether in contract, tort (including negligence), breach of statutory duty or otherwise, shall be limited and in any event shall not exceed the fees paid or to be paid by the Hirer for the Services in accordance with clause 5 in connection with each Candidate Engaged by the Hirer and under no circumstances shall the

Supplier be liable for any consequential, indirect or special losses howsoever arising or for any loss of profits, revenue, interest, goodwill, business and/or savings (whether direct or indirect).

8.4 This clause 8 shall survive termination of the Contract.

9. TERMINATION

Without limiting its other rights or remedies, the Supplier may terminate the Hirer's account on and/or disable or suspend the Hirer's access to the Website or any part of it (including the Services or information available on or through the Website) at any time in its absolute discretion and without any explanation or notification.

10. GENERAL

10.1 **Force majeure.** Neither party shall be in breach of this Contract nor liable for delay in performing, or failure to perform, any of its obligations under this Contract if such delay or failure result from events, circumstances or causes beyond its reasonable control.

10.2 **Assignment and other dealings.**

- (a) The Supplier may at any time assign, transfer, mortgage, charge, subcontract or deal in any other manner with all or any of its rights under the Contract and may subcontract or delegate in any manner any or all of its obligations under the Contract to any third party or agent.
- (b) The Hirer shall not, without the prior written consent of the Supplier, assign, transfer, mortgage, charge, subcontract, declare a trust over or deal in any other manner with any or all of its rights or obligations under the Contract.

10.3 **Confidentiality.**

- (a) Each party undertakes that it shall not at any time disclose to any person any confidential information concerning the business, affairs, customers, clients or suppliers of the other party, except as permitted by clause 10.3(b).
- (b) Each party may disclose the other party's confidential information:
 - (i) to its employees, officers, representatives, subcontractors or advisers who need to know such information for the purposes of carrying out the party's obligations under the Contract. Each party shall ensure that its employees, officers, representatives, subcontractors or advisers to whom it discloses the other party's confidential information comply with this clause 10.3; and

- (ii) as may be required by law, a court of competent jurisdiction or any governmental or regulatory authority.
- (c) Neither party shall use the other party's confidential information for any purpose other than to perform its obligations under the Contract.

10.4 Entire agreement.

- (a) This agreement constitutes the entire agreement between the parties and supersedes and extinguishes all previous agreements, promises, assurances, warranties, representations and understandings between them, whether written or oral, relating to its subject matter.
- (b) Each party agrees that it shall have no remedies in respect of any statement, representation, assurance or warranty (whether made innocently or negligently) that is not set out in this agreement. Each party agrees that it shall have no claim for innocent or negligent misrepresentation or negligent misstatement based on any statement in this agreement.

10.5 Variation.

- (a) The Supplier reserves the right to amend these Conditions from time to time.
- (b) The Conditions in force at the time the Hirer uses the Services will apply to the Contract between the Supplier and the Hirer.

10.6 Waiver. A waiver of any right or remedy is only effective if given in writing and shall not be deemed a waiver of any subsequent breach or default. A delay or failure to exercise, or the single or partial exercise of, any right or remedy shall not:

- (a) waive that or any other right or remedy; or
- (b) prevent or restrict the further exercise of that or any other right or remedy.

10.7 Severance. If any provision or part-provision of the Contract is or becomes invalid, illegal or unenforceable, it shall be deemed modified to the minimum extent necessary to make it valid, legal and enforceable. If such modification is not possible, the relevant provision or part-provision shall be deemed deleted. Any modification to or deletion of a provision or part-provision under this clause shall not affect the validity and enforceability of the rest of the Contract.

10.8 Notices.

- (a) Any notice or other communication given to a party under or in connection with the Contract shall be in writing, addressed to that party at its registered office or such other address as that party may have specified to the other party in writing in accordance with this clause, and shall be

delivered personally, or sent by pre-paid first class post or other next working day delivery service, commercial courier, or email.

- (b) A notice or other communication shall be deemed to have been received: if delivered personally, when left at the address referred to in clause 10.8(a); if sent by pre-paid first class post or other next working day delivery service, at 9.00 am on the second Business Day after posting; if delivered by commercial courier, on the date and at the time that the courier's delivery receipt is signed; or, if sent email, one Business Day after transmission.
- (c) The provisions of this clause shall not apply to the service of any proceedings or other documents in any legal action.

10.9 **Third parties.** No one other than a party to the Contract shall have any right to enforce any of its terms.

10.10 **Governing law.** The Contract, and any dispute or claim (including non-contractual disputes or claims) arising out of or in connection with it or its subject matter or formation shall be governed by, and construed in accordance with the law of England and Wales.

10.11 **Jurisdiction.** Each party irrevocably agrees that the courts of England and Wales shall have exclusive jurisdiction to settle any dispute or claim (including non-contractual disputes or claims) arising out of or in connection with the Contract or its subject matter or formation.